

1 AN ACT relating to unemployment insurance.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 341.005 is amended to read as follows:

4 As used in this chapter, unless the context clearly requires otherwise:

5 (1) "Approved job training or certification program" means:

6 (a) A program approved by the secretary that leads to a short-term certificate or
7 credential, an industry-recognized certificate, diploma, or associate of applied
8 science degree in one (1) of Kentucky's top five (5) high-demand workforce
9 sectors identified by the Kentucky Workforce Innovation Board and the
10 Education and Labor Cabinet;

11 (b) A program approved and determined by the secretary to improve an
12 individual's employability in a high-wage, high-demand occupation; or

13 (c) A training program approved under the Trade Act of 1974, 19 U.S.C. sec.
14 2296;

15 (2) "Cabinet" means the Education and Labor Cabinet;

16 (3) **"Certified mail" has the same meaning as in KRS 446.010;**

17 **(4)** "Commission" means the Unemployment Insurance Commission;

18 **(5)**~~(4)~~ "Enhanced federal benefits" means any temporary federally funded or
19 partially federally funded benefits, administered by the Commonwealth and payable
20 through voluntary agreements between the Commonwealth and the United States
21 Department of Labor, that supplement or increase weekly state benefit amounts.
22 "Enhanced federal benefits" does not mean benefits such as, without limitation,
23 benefits otherwise calculated and distributed in accordance with KRS 341.350 to
24 341.415, extended benefits provided for in KRS 341.700 to 341.740, shared work
25 benefits provided for in KRS 341.4161 to 341.4173, disaster unemployment
26 assistance benefits, 42 U.S.C. sec. 5177, or trade readjustment allowances, 19
27 U.S.C. secs. 2291 to 2294, or any amendments thereto;

1 ~~(6)~~~~(5)}~~ **"Multi-factor authentication" means authentication through verification of**
2 **at least two (2) of the following methods of authentication factors:**

3 **1. Knowledge factors, such as a password;**

4 **2. Possession factors, such as a token or text message on a mobile phone; or**

5 **3. Inherence factors, such as a biometric characteristic;**

6 **(7) "Notice" means any communication from the secretary or any employer to**
7 **employers or employees required under this chapter;**

8 **(8)** "Secretary" means the secretary of the Education and Labor Cabinet or his or her
9 duly authorized representative; and

10 ~~(9)~~~~(6)}~~ "State average unemployment rate" means the seasonal adjusted statewide
11 unemployment rate that applies to the six (6) month period in which the claim is
12 filed. One six (6) month period shall begin on January 1 of each year and one six
13 (6) month period shall begin on July 1 of each year. For the six (6) month period
14 beginning on January 1, the state average unemployment rate shall be the average
15 of Kentucky's seasonal adjusted unemployment rates for the preceding months of
16 July, August, and September. For the six (6) month period beginning on July 1, the
17 state average unemployment rate shall be the average of Kentucky's seasonal
18 adjusted unemployment rates for the preceding months of January, February, and
19 March. In calculating the state average unemployment rate, the cabinet shall utilize
20 the most recent seasonal adjusted unemployment rate determined by the United
21 States Department of Labor, Bureau of Labor Statistics.

22 ➔SECTION 2. A NEW SECTION OF KRS CHAPTER 341 IS CREATED TO
23 READ AS FOLLOWS:

24 **Unless otherwise provided by law, any notice from the secretary or any employer to**
25 **employers or employees required under this chapter shall be in writing and delivered**
26 **by any method of governmental, commercial, or electronic delivery. The secretary shall**
27 **provide employers and employees the option to receive only electronic notices. The**

- 1 electronic notice system shall utilize effective privacy controls, which shall include
- 2 multi-factor authentication procedures for any individual accessing nonpublic
- 3 information.